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## CROATIA

### Human Rights Developments

Most of the key challenges to human rights in Croatia remained unmet in 1999, except for some limited and belated progress with regard to cooperating with the international community on war crimes. The government largely failed to implement measures designed to facilitate the return of internally-displaced and refugee Serbs to their homes, resulting in very limited returns, while the murder of a Serb in Eastern Slavonia, surprise war crimes indictments against Croatian Serbs, and continued uncertainty over the scope of the 1996 Amnesty Law underscored the lack of progress on reconciliation. Reform of Croatia state television did not address the international community's key concerns regarding editorial independence from the government and ruling party; putting the fairness of forthcoming legislative elections in doubt. Critical newspapers were subjected to spurious legal action.

Under the threat of United Nations Security Council sanctions and pressure from the United States and the European Union, Croatia agreed in September to extradite indicted Bosnian war crimes suspect Mladen Naletilic (a.k.a. "Tuta") to the International Criminal Tribunal for the Former Yugoslavia (ICTY) and proposed that ICTY judges determine whether the ICTY has jurisdiction over the 1995 "Flash" and "Storm" military operations against Serb rebels in the Krajina and Western Slavonia regions of Croatia. At this writing the extradition was pending. Croatia had earlier transferred Vinko Martinovic (a.k.a. "Stela"), his subordinate, in August. Between December 1998 and July 1999, the ICTY was subjected to repeated criticism by senior government officials in Croatia, including President Franjo Tudjman, who accused the ICTY of bias against Croats and threatened to end Croatia's cooperation with it. At this writing, Croatia remained in non-compliance with multiple document requests by the ICTY prosecution related both to the disputed operations and to alleged abuses by Bosnian Croat forces in the Bosnian war.

A Croatian court found Nazi-era concentration camp commander Dinko Sakic guilty of crimes against humanity in October, but the Croatian government remained reluctant to examine its own recent wartime record and it continued to prosecute Croatian Serbs for alleged war crimes without referring the evidence or indictments to the ICTY for review, despite promises to do so. Between January and May, courts in Eastern Slavonia and Baranja issued new indictments against ninety-one persons without referral to the ICTY and failed to respond to a request from the ICTY to review the evidence against twenty-three Serbs from Dalj village who were among those indicted.

The application of the 1996 Amnesty Law remained confused, leaving it unclear who was eligible for amnesty, and little progress was made in clarifying the identity of many of the 13,575 persons amnestied thus far. The Committee on Trust and Reconciliation, charged with coordinating efforts to reintegrate Croatia's Serb citizens, barely functioned. In line with its obligations, the government finally provided adequate funding and status for the Joint Council of Municipalities, a consultative body of elected Serb representatives for Eastern Slavonia, although it remained politically marginalized.

For most of the more than 300,000 Croatian Serb refugees and internally-displaced persons, the promise of obtaining identity documents necessary for return and of reclaiming occupied homes offered by the government's 1998 program and procedures for return failed to materialize. Although at

this writing more than 30,000 Serb refugees had returned to Croatia since the beginning of 1996, mostly from Bosnia and Hercegovina and the Federal Republic of Yugoslavia (FRY), a similar number had fled the country during the same period. The procedure for organized return administered by the Croatian Office for Displaced Persons and Refugees functioned adequately for the most part, but lack of accommodation left many cases pending and most Serbs who returned did so unassisted. Refugees attempting individual return from Bosnia's Republika Srpska and FRY were frequently frustrated by slow or non-functioning consulates in Banja Luka and Belgrade in their efforts to obtain travel documents. Refugees returning to Croatia unassisted faced delays in accessing the short-term social benefits associated with return.

For those inside or able to return to Croatia, lack of access to housing remained a key obstacle. Municipal housing commissions established to oversee property claims resolved few cases involving occupied Serb homes, despite the issuance of operational instructions in February, while courts continued to evict displaced Serbs occupying Croat homes. Evicted Serbs unable to return to their own occupied homes were rarely provided with acceptable alternative accommodations or compensation. The government commission established to oversee the work of the housing commissions and other elements of the return process did not function. No progress was made in framing regulations to deal with abolition of discriminatory war-time housing legislation, leaving many Serb property owners and former tenancy-right holders in limbo. Access by Serbs to reconstruction assistance to repair war-damaged homes remained limited by existing legislation even after a new "non-discriminatory" program for reconstruction was introduced in December 1998.

Discrimination against Croatian Serbs was not limited to housing and the right of return. At this writing, the law on "areas of special state concern," which allows for permanent legal expropriation of Serb-owned property by current temporary occupants, and the law regulating the status of refugees remained on the statute books despite repeated government promises to amend or repeal them. Implementation of the "convalidation" law allowing recognition of administrative documents issued during the war by de-facto Serb authorities remained uneven.

There was an increase in intimidation and violence against Serbs in some parts of Eastern Slavonia and Baranja during the spring of 1999. Much of the violence centered on the village of Berak, near Vukovar. The exhumation of Croat war victims in the village in April prompted recently returned Croat residents to demonstrate against Serb war-time abuses and provided a pretext for harassment of Serb residents and the assault of a Serb police officer in May. Some Serb families fled their homes as a result. In August, Djuro Mutic, a thirty-nine-year-old Serb from Berak, was beaten to death outside his home by a group of Croat former refugees. One suspect implicated in earlier incidents was taken in for questioning, but at this writing investigations were continuing and no charges had been brought. Harassment and intimidation of Serbs also occurred in Borovo, Beli Manastir, Cakovci, Sotin, and Mirkovci, among other places.

Broadcast media, widely cited as having a decisive role in the ruling party's victory in the 1997 local and presidential elections,

remained under the firm editorial and political control of the HDZ, with a disproportionate representation of the ruling party's views on three television channels of Croatian Radio-Television (Hrvatska Radiotelevizija, HRT). In July, a license was granted to Nova Television in July to establish a private fourth national channel, but Nova's close ties to HRT raised questions about editorial independence.

Independent newspapers and journalists continued to face harassment by the courts and police. In June, the editor of the weekly Nacional (Zagreb) was arrested in his home after an investigation into corruption in the country's secret service. In July, a journalist with Jutarnji List (Zagreb) received death threats after reporting on prison conditions. Nacional and the satirical weekly Feral Tribune (Split) continued to be the subject of multiple libel suits by the government and government officials.

### **Defending Human Rights**

There were no reports of restrictions on the freedom to monitor by international or local nongovernmental organizations (NGOs), although local nongovernmental organizations were

periodically attacked in the pro-government press. Recognizing the importance of free and fair elections for the development of other human rights, several NGO coalitions, including Citizens Organizing to Oversee Voting (Gradjani Organizirano Nadgledaju Glasanje, GONG) and the Women's Ad Hoc Coalition, were active in preparing for the elections to the House of Deputies. Continuing its monitoring and advocacy, the Croatian Helsinki Committee issued a major report documenting violence against Serbs in 1995 and condemned attacks on press freedom. The Croatian Law Center worked to promote legal reform and the rule of law, while the Civil Rights Project and the Knin Legal Aid Project continued to provide legal assistance in housing, citizenship, and other discrimination cases.

## **The Role of the International Community**

### **United Nations**

The U.N. Committee Against Torture considered the second periodic report of Croatia in November 1998. While praising Croatia's incorporation of the crime of torture into its national legislation, the committee expressed concern at allegations of ill treatment and torture by Croatian security forces, especially members of the police. The January report of the U.N. Special Rapporteur to the U.N. Commission on Human Rights, Jiri Dienstbier, highlighted ongoing discrimination against Serbs in Croatia. Considering his report in April, the commission called for electoral reform and further progress on equal rights for Serbs.

During a visit in May, the U.N. High Commissioner for Human Rights signed an agreement with the Croatian government for her office in Zagreb to provide human rights training for the police, military, and prison officers. Despite limited resources, the U.N. High Commissioner for Refugees continued its efforts to promote the return of Serb refugees to Croatia and assisted refugees and displaced persons inside the country. The U.N. Security Council extended the mandate of its military observer mission to the disputed Prevlaka peninsula twice, in January and July.

### **Organization for Security and Cooperation in Europe (OSCE)**

The OSCE remained at the forefront of international efforts to promote respect for human rights in 1999. With 250 international staff in 16 field offices, the mission benefited from improved internal reporting structures, notably the resuscitation of the field activities report. January, May and September reports to the Permanent Council were much more critical than those during 1998, reflecting a new willingness to point out the gap between Croatia's commitments and its actual performance. The mission also began to put detailed information on its website.

The need for greater press freedom and especially electronic media reform in Croatia was noted by visitors from a range of OSCE institutions, including Chairman-in-Office Knut Vollebaek, Parliamentary Assembly President Helle Degn MP, and the representative on freedom of the media, Freimut Duve. Mr. Duve issued a March report detailing the curbs on media freedom in Croatia, linking them to the forthcoming national elections and recommending urgent reform of the state broadcasting service, HRT.

### **Council of Europe**

The Parliamentary Assembly of the Council of Europe (PACE) continued to scrutinize Croatia's progress toward meeting the human rights standards required of Council of Europe members. In April, the Assembly noted Croatia's ratification of the Convention on Human Rights but expressed concern at the lack of progress on media and electoral reform, and ongoing discrimination against Croatian Serbs. The monitoring procedure was extended for an additional year. An April report by the PACE Committee on Migration, Refugees and Demography also noted the range of obstacles for Serb refugees and internally displaced persons wishing to return to their pre-war homes. A June visit to Croatia by an expert delegation on media from the Council of Europe underscored the need to bring Croatian law on telecommunication and broadcasting into harmony with Council of Europe standards.

### **European Union**

In the context of the internationally negotiated Stability Pact for Southeastern Europe, the European Union (E.U.) undertook a major restructuring of its framework of relations with the countries of the "Western Balkans" during 1999. The new arrangement had little immediate effect on the E.U.'s position toward Croatia but held the promise of significantly closer ties in the near future. In May, E.U. foreign ministers approved a new "stabilization and association process" which combines additional economic and legal conditionality and the possibility of future E.U. membership with the existing political conditionality of its 1997 "regional approach for southeastern Europe."

In June, E.U. foreign ministers determined that Croatia's progress on human rights and democracy was "insufficient" to permit Croatia to receive assistance (and political legitimacy) from the PHARE reconstruction program, but indicated that if progress was maintained it could benefit from such assistance in the near future. In September, the E.U. governments expressed concern over Croatia's limited cooperation with the ICTY and postponed a decision about a consultative task force on contractual relations between Croatia and the E.U. Nevertheless, the foreign ministers' statement in June and the resumption in July of an informal E.U.-Croatia political dialogue which was suspended in 1995 suggested that the E.U. may be willing to relax its previous human rights conditionality, a signal that is only likely to worsen Croatia's performance. In 1998 the E.U. provided an estimated 24 million Euro (U.S. \$25.2 million) to Croatia including 600,000 Euro (U.S. \$630,000) for human rights and democracy. Assistance in 1999 was slightly higher at around 25 million Euro (U.S. \$26.2 million).

## United States

The United States consolidated its strategic relationship with Croatia during 1999, providing a security guarantee in case of Serbian attack to Croatia in March following the start of NATO airstrikes on Kosovo, and making Croatia eligible to purchase U.S. armaments in April. Washington also continued to provide an estimated U.S.\$425,000 through the international military education & training (IMET) program. Croatia's image as a U.S. ally was bolstered by the invitation of the Croatian Foreign Minister to Washington in March for discussions with the U.S. Secretary of State and the tone of a September meeting between U.S. Representative to the United Nations Richard Holbrooke and Croatian President Franjo Tudjman.

The U.S. was sometimes willing to call Croatia to task on its failure to uphold human rights, notably on cooperation with the ICTY and the need for electoral reform. Around half of the estimated U.S.\$12 million provided to Croatia under the support for Eastern European democracy (SEED) program went directly toward democratization. On the question of the return of Serb refugees to Croatia, the U.S. showed more willingness to give Croatia the benefit of the doubt, promising U.S.\$5 million in May in support of the government's refugee return plan despite continued legal and administrative obstacles to return. The State Department's Country Reports on Human Rights Practices for 1998 indicated that the U.S. was well aware of Croatia's failure to comply with many international human rights standards.

## Relevant Human Rights Watch report:

Second Class Citizens: The Serbs of Croatia, 3/99.

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